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FILED
MAY 27 2025
CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY _____ DEPUTY CLERK

UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI

Plaintiff(s),

vs.

STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONZALEZ (#023295); OFFICER MELANO (#023054)

Defendant(s).

Case No.: 2:25-CV-1460 DC CSK P

COMPLAINT FOR VIOLATIONS OF CIVIL RIGHTS

JURISDICTION AND VENUE

1. This action arises under the Constitution of the United States, particularly the Fourth and Fourteenth Amendments, and is brought pursuant to 42 U.S.C. § 1983.

2. This Court has jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343 (civil rights).

3. Venue is proper in this district under 28 U.S.C. § 1391(b), because the events giving rise to this action occurred in this District.

PARTIES

4. Plaintiff Brendan Ngehsi Newanforbi is, and was at all relevant times, a resident of California.

5. Defendant State of California is a government entity which employs California Highway Patrol officers.

6. Defendant California Highway Patrol is a division of the State of California and is responsible for the training, oversight, and conduct of its officers.

7. Defendant Officer Santiago Meza-Gonzalez (#023295) is sued in both his individual and official capacities as a California Highway Patrol Officer.

8. Defendant Officer Melano (#023054) is sued in both his individual and official capacities as a California Highway Patrol Officer.

9. DOES 1 through 10 are persons presently unknown who participated in the violations described herein.

FACTUAL ALLEGATIONS

10. On November 1, 2024, at approximately 00:54 AM, Plaintiff was lawfully parked on a dirt shoulder off Interstate 580 East in Livermore, California, resting inside a rental Tesla Model Y. Plaintiff had chosen to pull over out of an abundance of caution after feeling fatigued following a long night of social activity, consistent with his professional training as a commercial truck driver where safety and rest are paramount. At the time, Plaintiff was not engaged in any unlawful conduct and posed no threat to public safety.

11. California Highway Patrol officers, including Defendant Santiago Meza-Gonzalez and Defendant Officer Melano, approached Plaintiff's vehicle under the pretext of a welfare check. Upon approaching the vehicle, one officer remarked, "It's a rental," and shortly thereafter, upon observing a upon observing a cup in the center console, stated, "I think it's booze," to which the other officer replied, "Yeah?" These statements marked a shift from welfare concern to investigative suspicion of DUI. The officers then turned their flashlights into the windows and began peering into the vehicle

in an investigatory manner.

12. Without Plaintiff's consent or a warrant, officers peered into the vehicle and speculated that a cup inside might contain "booze."

13. Officers proceeded to open Plaintiff's passenger door without consent, probable cause, or exigent circumstances.

14. Plaintiff was ordered out of his vehicle, despite having remained calm, compliant, and cooperative throughout the encounter. Plaintiff made no threats, no sudden movements, and posed no apparent risk to officer safety. He was questioned extensively and subjected to field sobriety tests, despite exhibiting no signs of criminal activity or intoxication.

15. Defendant Officer Melano conducted an intrusive search of Plaintiff's vehicle without consent or probable cause. The search included reaching into the cupholders, examining the center console area, and scanning around the footwells and floorboards of the vehicle. At no point did Defendant Melano have any specific or articulable facts justifying the belief that Plaintiff's vehicle contained contraband or evidence of a crime.

16. No evidence of intoxication or illegal activity was found.

17. Plaintiff was detained, placed in handcuffs, and transported for chemical testing under suspicion of DUI, without sufficient probable cause.

18. Despite the arrest report reflecting that charges were sought, the California Highway Patrol later issued correspondence characterizing the encounter as a mere "detention" because no charges were filed by the District Attorney. Plaintiff asserts that this characterization is factually and legally incorrect. He was subjected to handcuffing, placed in the back of a patrol vehicle, transported under guard, and read chemical test advisements – all indicia of a full custodial arrest within the meaning of *Dunaway v. New York*, 442 U.S. 200 (1979).

19. As a result of Defendants' conduct, Plaintiff suffered emotional distress, humiliation, loss of liberty, reputational harm, and economic injury. In particular, the administrative chemical refusal

designation triggered an extended suspension of Plaintiff's Class A commercial driver's license until February 2026. As a result, Plaintiff lost access to steady employment in the trucking industry, leading to more than a year of lost wages, reduced earning capacity, and a downward shift in his financial stability. Emotionally, Plaintiff experienced sustained anxiety, frustration, and feelings of helplessness and isolation, which were compounded by the stigma of a DUI-related designation that continues to impact his reputation and employment prospects.

Additionally, the arrest triggered a parole violation hold, and Plaintiff was incarcerated from the Friday of the incident until the following Wednesday. During that time, he was not brought to court for arraignment and was forced to share a confined space with an individual facing homicide charges. Plaintiff was subjected to verbal hostility and intimidation, including threats and visible agitation from the other detainee, who became increasingly angry as Plaintiff questioned the reasons for his continued detention. Plaintiff feared for his safety and well-being, suffering unnecessary trauma and exposure to volatile and dangerous conditions as a result of Defendants' actions.

CLAIMS FOR RELIEF

COUNT I

(Violation of the Fourth Amendment - Unlawful Search and Seizure)

20. Plaintiff realleges and incorporates by reference all previous paragraphs.

21. Defendants violated Plaintiff's Fourth Amendment rights by conducting an unlawful search and seizure without probable cause, consent, exigent circumstances, or a valid warrant.

COUNT II

(Violation of the Fourteenth Amendment - Due Process)

22. Plaintiff realleges and incorporates by reference all previous paragraphs.

23. Defendants violated Plaintiff's Fourteenth Amendment right to due process by arbitrarily and unlawfully detaining him and escalating a welfare check into an unwarranted criminal investigation

COUNT III

(Municipal Liability - Monell Claim Against State of California and California Highway Patrol)

24. Plaintiff realleges and incorporates by reference all previous paragraphs.

25. The constitutional violations were caused by customs, policies, or practices of the California Highway Patrol and/or its deliberate indifference to citizens' constitutional rights.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

1. Award compensatory damages in an amount to be proven at trial;

2. Award punitive damages against individual Defendants;

3. Award reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

4. Award any such further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a jury trial on all issues so triable.

Respectfully submitted,

DATED: May 21, 2025

BRENDAN NGEHSI NEWANFORBI
In Pro Per